

The Juvenile Justice (Care and Protection of Children) Rules, 2001 (Model)

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The Juvenile Justice (Care and Protection of Children) Rules, 2001 (Model)

UNION OF INDIA

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The Juvenile Justice (Care and Protection of Children) Rules, 2001 (Model)

Rule THE-JUVENILE-JUSTICE-CARE-AND-PROTECTION-OF-CHILDREN-RULES-2001-MODEL of 2001

Published on 22 June 2001

Commenced on 22 June 2001

[This is the version of this document from 22 June 2001.]

[Note: The original publication document is not available and this content could not be verified.]

The Juvenile Justice (Care and Protection of Children) Rules, 2001 (Model)

Published Vide F.No. 1-3/2001-SD. Dated 22nd June, 2001.

For better implementation and administration of the provisional of the said Act in its true spirit and substance]

F.No. 1-3/2001-SD. dated 22nd June, 2001. - Whereas the Constitution of India has in several provisions including clause (3) of Article 15, clause (c) and (f) Article 39, Article. 45 and 47, impose on the State a primary responsibility of ensuring that all the needs of children are met and that their basic human rights are fully protected.

AND WHEREAS, the General Assembly of the United Nations has adopted the Convention on the Rights of the Child on the 20th November, 1989;

AND WHEREAS, the Convention on the Rights of the Child has prescribed a set of standards to be adhered to by all

State parties in securing the best interests of the child.

AND WHEREAS, the convention on the Rights of the Child emphasises social reintegration of child victims, to the extent possible, without resorting to judicial proceedings;

AND WHEREAS, the Government of India has ratified the Convention on the 11th December, 1992.

AND WHEREAS, it was considered expedient to re-enact the Juvenile Justice Act, 1986 bearing in mind the standards prescribed in the Convention on the Rights of the Child, the United Nations Standard Minimum Rules for the Administration of Juvenile Justice, 1985 (the Beijing Rules), the United Nations Rules for the Protection of Juveniles Deprived of their Liberty (1990), and all other relevant international instruments.

AND WHEREAS, to give effect to the provisions of the Constitution and Convention, the Juvenile Justice (care and protection of children) Act, 2000 (herein under referred to as the said Act) was enacted to consolidate and amend the law relating to juveniles in conflict with law and children in need of care and protection, by providing for proper care, protection and treatment by catering to their development needs, and by adopting a chief friendly approach in the adjudication and disposition ,, of matters in the best interest of children and for their ultimate rehabilitation through various institutions established under that Act.

NOW, THEREFORE, in pursuance of the above said provisions and all other enabling powers in this behalf, the Central Government hereby lays down the principles and makes the following Rules (model) to be applied until new rules are framed by the State Government in this regard to provide for better implementation and administration of the provisions of the said Act in its true spirit, and substance, namely.

Principles

The following principles shall, inter alia, be fundamental to the development of strategies, interpretation and implementation of the said Act.

This enumeration does not preclude resorting to any higher measures possible or evolved in consonance with the Constitution.

1.

Principle of right to innocence. - The juvenile or child's right to innocence and presumption of innocence up to the age of seven years (or up to the age of twelve years, as under) be respected throughout the process from the initial contact to aftercare.

The basic components of the right to and presumption of innocence are:

(i)

Age of innocence-

(a)

A juvenile or child is presumed to be innocent of any mala fide or criminal intent up to the age of seven years in all cases and upto twelve years in the cases wherein he is unable to understand the consequences of his action on account of immaturity of understanding.

(b)

Unlawful conduct which is done for survival, or is due to environmental or situation factors or is done under control of adults or peer groups, is ought to be covered by the principles of innocence.

(c)

The idea is to allow certain benefits to a juvenile in conflict with law vis-a-vis his mental development assessed by the experts in the field through out the world as of eighteen years being the time of demarcation and with this end in view the yardstick can only be the date of occurrence because the whole spirit is to impart benefit to such juvenile on grounds of lesser development of his mental faculty.

(ii)

Procedural protection of innocence-

Procedural safeguards shall be guaranteed to protect the presumption of innocence.

(iii)

Provisions of Legal aid and Guardian Ad Litem

To protect the juvenile's or child's right to and the presumption of innocence, provisions must be made when needed, for free legal aid and guardian ad litem.

(iv)

Avoidance of harm-

At all stages, from the initial contact till disposition, extreme care shall be taken to avoid any harm to the sensitivity of the juvenile or child.

2.

Principle of best interest. - This principle seeks to ensure physical emotional, intellectual, social and moral development of juvenile or child, so as to make him a useful and good citizen by ameliorating the impediments to healthy development.

3.

Principle of family cushion. - The family, biological adoptive or foster (in that order), must be involved in the processes, preferred as placement cushion and strengthened as the base unit for care, protection and redirection of the juvenile or child under the said Act unless the best interest measures or mandates dictate otherwise.

4.

Principle of no harm, no maltreatment. - The juvenile or child who is placed in any institution under the said Act or under any placement cushion, shall not be subjected to any harm, abuse, neglect maltreatment, corporal punishment or solitary confinement.

5.

Principle of non-stigmatizing semantics, decisions and actions. - The non-stigmatizing semantics of the said Act must be strictly adhered to, and the use of adversarial or accusatory words, such as, arrest, remand, accused, charge sheet, trial prosecution, warrant, summons, conviction, inmate, delinquent, neglected, custody, etc., is prohibited in the processes pertaining to the juvenile or child under the said Act.

6.

Principle of balancing. - This principle aims at striking a balance between the provisions of the said Act on one hand and constitutional safeguards and social ethos on the other, in the dispensation of matters pertaining to juvenile or child.

7.

Principle of non-waiver of rights. - No waiver of rights of the juvenile or child, whether by himself or the competent authority or anyone acting or claiming to act on behalf of the juvenile or child, is either permissible or valid.

Non-exercise of a fundamental right does not amount to waiver.

8.

Principle of equality. - Equality of access, equality of opportunity, equality under the said Act, is guaranteed to the juvenile or child, and as such there shall be no discrimination on the basis of age, sex, place of birth, disability, race, ethnicity, status, caste, cultural practices, work, activity or behaviour of the juvenile or child or that of his parents or guardians, or the civil and political status of the juvenile or child.

9.

Principle of right of privacy and confidentiality. - The juvenile or child's rights to privacy and confidentiality shall be protected by all means and through all the stages of the proceedings.

10.

Principle of Fresh Start. - The principle of fresh start promotes new beginning for the juvenile or child by ensuring erasure of his past records.

11.

Principle of last resort. - Institutionalization of juvenile or child will be a step of the last resort after reasonable enquiry and that too for the minimum possible duration.

12.

Principle of repatriation. - Any juvenile or child, who is a foreign national and who has lost contact with his family, shall also be eligible for protection under the said Act and he shall be repatriated, at the earliest to his country.

The (name of State/UT) juvenile Justice (Care and Protection of Children) Rules, 2001.

In exercise of the powers conferred by Section 68 of the juvenile Justice (Care and Protection of Children) Act, 2000 (No. 56 of 2000), the State Government/ Administrator.....hereby makes the following rules, namely.

Chapter I

Preliminary

1. Short title and commencement.

(1)

These rules may be called the (name of the State/UT) juvenile Justice (Care and Protection of Children) Rules, 2001.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2. Definition.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the juvenile Justice (Care and Protection of Children) Act, 2000 (56 of 2000);

(b)

"adoption" means taking permanent custody and responsibility of a juvenile or a child covered under this Act, who shall have pari passu rights of a natural born child;

(c)

"Form" means the form annexed to these rules.

(d)

"institution for the purposes of these rules, means an observation home, or a special home, or a children's home or a shelter home, set up certified or recognised under Sections 8,9,34 and 37 of the Act respectively.

(e)

"Officer-in-charge" (nomenclature as used by the State Government) means a person appointed for the control and management of the institution.

(f)

"State Government" in relation to a Union Territory, means the Administrator of that Union territory appointed by the President under Article 239 of the Constitution.

(g)

all words and expressions defined in the Act and used, but not defined in these rules, shall have the same meaning as assigned to them in the Act.

Chapter-II Juvenile In Conflict With Law

3. Juvenile Justice Board.

(1)

The Board shall consist of a Metropolitan Magistrate or a Judicial Magistrate of the first class, as the case may be, and two social workers of whom at least one shall be a woman, forming a bench.

(2)

Every such bench shall have the powers conferred by the Code of Criminal Procedure, 1973 (2 of 1974).

(3)

(a)

A Magistrate with special knowledge or training in child psychology or child welfare shall be designated as the principle Magistrate of the Board.

(b)

In case the principle Magistrate with such special knowledge or training is not available, then, the State Government shall provide for such short-term training in child psychology or child welfare as it considers necessary.

(4)

The two social workers, of whom at least one shall be a woman, shall be appointed by the State Government on the recommendation of the Selection Committee set up under sub-rule (2) of rule 24 of these rules.

(5)

The Selection Committee shall take into consideration the panels of names recommended by the local authority while considering the selection of social workers for the Board and shall prepare a panel of names for each Board including a panel of names to fill in vacancies, which may arise during the tenure of the Board.

(6)

The social worker to be appointed as a member of the Board shall be a person who has been actively involved and engaged in planning implementing and administering measures relating to health, education or other welfare activities pertaining to children for at least seven years.

(7)

The Board shall have a tenure of three years and the appointment of members shall be co-terminus with the tenure of the Board.

(8)

A social worker being a member of the Board shall be eligible for appointment for a maximum of two terms.

(9)

The Board shall hold its sitting in the premises of an Observation Home and shall meet on all the working days of a week.

(10)

A member may resign any time, by giving one month's advance notice in writing or may be removed from his office as provided in sub-section (5) of Section 4 of the Act.

(11)

The social worker members of the Board shall be paid such travelling or meeting allowance or honorarium, as the State Government may, decide from time to time.

4. Institutional Management for juveniles in conflict with law.

(1)

The State Government or the voluntary organisation certified by that State Government shall set up separate observation homes for boys and girls.

(2)

The State Government or the Voluntary Organisation certified by that Government shall set up separate special homes for girls above the age of 10 years and boys in the age groups of 11 to 15 and 16 to 18 years as and when required.

(3)

The following procedure shall be followed in respect of the newly admitted juveniles, namely-

(a)

receiving and search;

(b)

hair-cut (unless prohibited by religion), issue of toiletry items;

(c)

disinfection and storing of juvenile's personal belongings and other valuables.

(d)

bath;

(e)

issue of new set of clothes, bedding and other outfit and equipment (as per scales);

(f)

medical examination and treatment, where necessary and in case of any juvenile suspected to be suffering from contagious or infectious diseases, mental ailments, addiction etc., he shall be immediately segregated in specially earmarked dormitories or wards or hospitals.

(g)

attending to immediate and urgent needs of the juvenile's like appearing in examinations, interview letter to parent(s), personal problems etc., and

(h)

verification by the Officer-in-charge of the order of the Board, identification marks, register entries, cash, other valuables etc.

(4)

Every institution shall follow a schedule of orientation for the newly admitted juvenile covering the following aspects, namely-

(a)

health, sanitation, hygiene;

(b)

institutional discipline and standards of behaviour, respect for elders, teachers, etc.

(c)

self-improvement opportunities, and

(d)

responsibilities and obligations

(5)

A case history of the juvenile or the child admitted to an institution shall be maintained which may contain information regarding his socio-culture and economic background and these information may invariable be collected through all possible and available sources, including home, parents or guardians, employer, school, friends and community.

(6)

The educational level and vocational aptitude of the juvenile admitted, may be assessed on the basis of test and interview conducted by the teacher, the workshop supervisor and other technical staff and necessary linkages may also be established with outside specialists and community-based welfare agencies, psychologist, psychiatrist, child guidance clinic, hospital and local doctors, open school, Jan Sikshan Sansthan etc.

(7)

All residents in the institution shall be given work like-

(a)

self-help in maintaining their own establishment;

(b)

cleaning of open spaces, gardening, etc.;

(c)

preliminary operations for crafts.

(8)

A well conceived programme of pre-release planning and follow up of cases discharged from special homes shall be organised in all institutions in close collaboration with existing governmental and voluntary welfare organisation.

5. Daily Routine.

- Every institution shall have a well regulated daily routine for the juveniles, which shall be displayed and provide, inter alia, for regulated and disciplined life, personal hygiene and cleanliness, physical exercise, educational classes, vocational training, organized recreation and games, moral education, group activities, prayer and community singing and special programmes for Sundays and holidays.

6. Diet Scale.

- The State Government shall prepare a diet scale, to be strictly adhered to by the institutions, for juveniles in consultation with nutrition experts so that the diet becomes balanced, nutritious and varied, with a special diet which may be provided on holidays, festivals and to the sick juveniles as required.

7. Issue of clothing, bedding and other articles.

- Each juvenile shall be provided with clothing and bedding, including customary under-garments, towel, jersey for winter, school uniform for juveniles attending outside schools, durry, bed-sheets, blanket, pillow, chappal or shoes, utensils as required; and tooth powder, soap, oil, comb, etc. as per the scale laid down by the State Government from time to time.

8. Sanitation and Hygiene.

- Every institution shall have the following facilities, namely-

(a)

sufficient treated drinking water;

(b)

sufficient water for bathing and washing clothes, maintenance and cleanliness of the premises;

(c)

proper drainage system;

(d)

arrangements for disposal of garbage;

(e)

protection from mosquitoes;

(f)

sufficient number of latrines in the proportion of at least one latrine for seven children.

(g)

sufficient number of bathrooms in the proportion at least one bath room for ten children;

(h)

sufficient space for washing.

(i)

clean and fly-proof kitchen.

(j)

sunning of bedding and clothing; and

(k)

maintenance of cleanliness in the Medical Centre.

9. Accommodation.

- The minimum standard of accommodation, to the extent possible, shall be as follows

(a)

Dormitory

-

40 square feet per juvenile.

Classroom

-

Sufficient accommodation.

Workshop

-

Sufficient work space.

Playground

-

Sufficient play ground area shall be provided in every institution according to the total number of juveniles in the institution.

(b)

The dormitories, classroom and workshops shall have sufficient cross ventilation and light.

10. Medical Care.

(1)

Every institution shall provide for the necessary medical facilities so as to ensure that-

(a)

regular facilities are available for the medical treatment;

(b)

arrangements are made for the immunization coverage; and

(c)

a system is evolved for referral of cases with deteriorating health or serious cases to the nearest civil hospital or recognised treatment centres.

(2)

Each juvenile admitted in an observation home shall be medically examined by the Medical Officer within 24 hours and in special cases within 48 hours giving the reasons therefore, and also at the time of transfer of the juvenile to a special home, within a similar period before transfer and further at any other time that may be considered necessary by the Medical Officer or the Officer-in-charge.

(3)

No surgical treatment shall be carried out on any juvenile without the previous consent of his parent or guardian, unless either the parent or guardian cannot be found and the condition of the juvenile is such that any delay shall, in the opinion of the medical officer, involve unnecessary suffering or injury to the health of the juvenile, or without obtaining a direction to this effect from the Board.

(4)

A health record of each juvenile in the institution shall be maintained on the basis of quarterly medical check-up.

11. Monitoring and Evaluation of Juveniles.

(1)

A juvenile shall be grouped on the basis of the age, physical and mental health, length of stay order, degree of

delinquency and the character.

(2)

For the purposes of sub-rule (1), a monitoring and evaluation committee shall be constituted in each institution consisting of the following personnel, namely.

Officer-in-Charge

Chairperson.

Child Welfare Officer/Psychologist

Member-Secretary.

Medical Officer

Member.

Workshop Supervisor/Instructor in Vacation

Member

Teacher

Member

(3)

The committee shall meet periodically to consider and review.

(a)

custodial care, housing, place of work, area of activity and type of supervision required.

(b)

individual problems of juveniles, family contacts and adjustment, economic problems, and institutional adjustment, etc.

(c)

vocation training and opportunities for employment;

(d)

education, i.e. health education, social education, academic education, vocational education and moral education;

(e)

social adjustment recreation, group work activities, guidance and counselling;

(f)

special instruction, collecting moral information, and special precautions to be taken, etc.

(g)

review of progress and adjusting institutional programmes to the needs of the inmates.

(h)

planning post-release rehabilitated programme and follow up for a period of two years in collaboration with care service.

(i)

pre-release preparations;

(j)

release, and

(k)

any other matter which the Officer-in-charge may like to bring up.

12. Rewards and Earnings.

- Rewards to the juveniles at such rates as may be fixed by the Officer-in-charge as an encouragement to steady work and good behaviour, and at the time of release, the reward shall be handed over after obtaining a receipt from the parent or the guardian who comes to take charge of the juvenile.

13.

Visits to and communication with inmates.

(1)

The parent and relations of the Juveniles shall be allowed to visit once in a month or in special cases, more frequently at the discretion of the Officer in-charge as per the visiting hours down by him.

(2)

The receipt of letters by the Juveniles of the institution shall not be restricted and they shall have freedom to write as many letters as they like at all reasonable times, and the institution shall ensure that where parents, guardians or relatives are known, at least one letter is written by the juvenile every month for which the postage shall be provided.

(3)

The Office-in-Charge may peruse any letter written by or to the juvenile, and may for the reasons that he considers sufficient to refuse to deliver or issue the letter, may destroy the same after recording his reasons in a book maintained for the purpose.

14.

Prohibited Articles.

- No person shall bring into the institution the following prohibited articles, namely.

(a)

fire-arms or other weapons, whether requiring license or not (like lathi, spears, swords etc.).

(b)

alcohol and spirit of every description;

(c)

bhang, ganja, opium and other narcotic or psychotropic substances;

(d)

tobacco, or

(e)

any other article specified in this behalf by the State Government by a general or special order.

15.

Articles found on search and inspection.

(1)

The Officer-in-charge shall see that every juvenile received in the institution searched, his personal effects inspected and any money or valuables found with or on the person of the juvenile is kept in the safe custody of the Officer-in-Charge.

(2)

Girls shall be searched by a female member of the staff with due regard to decency.

(3)

In every institution, a register of money, valuables and other articles found with or on the person of a juvenile received therein shall be maintained which may be called the "Personal Belonging Register."

(4)

The entries made in the Personal Belonging Register, relating to each juvenile, shall be read over to juvenile in the presence of a witness whose signature shall be obtained in token of the correctness of such entries and it shall be countersigned by the Officer-in-Charge.

16.

Disposal of articles.

- The money or valuables belonging to a juvenile received or retained in an institution shall be disposed of in the following manner-

(a)

On an order made by the competent authority in respect of any juvenile, directing the juvenile to be sent to an institution, the Officer-in-Charge shall deposit such juvenile's money together with the sale proceeds in the manner laid down from time to time in the name of the juvenile.

(b)

The Juvenile's money shall be kept with the Officer-in-Charge and valuables, clothing, bedding and other articles, if any, shall be kept in safe custody.

(c)

When such juvenile is transferred from one institution to another, all his money, valuables and other articles, shall be sent along with the juvenile to the Officer-in-Charge of the institution to which he has been transferred together with a full and correct statement of the description and estimated value thereof.

(d)

At the time of release of such juvenile, the valuables and other articles kept in safe custody and the money deposited in name of the juvenile shall be handed over to the parent or guardian, as the case may be, with an entry made in this behalf in the register and signed by the Officer-in-Charge.

(e)

When a Juvenile of an institution dies, the valuable and other articles left by the deceased and the money deposited in the name of the Juvenile shall be handed over by the Officer-in-Charge to any person who establishes his claim thereto and executes an indemnity bond.

(f)

A receipt shall be obtained from such person for having received such valuables and other articles and the amount.

(g)

If no claimant appears within a period of six months from the date of death or escape of such juvenile, the valuables and other articles and amount shall be disposed of as per the decision taken by monitoring and evaluation committee.

17.

Duties of the Officer-in-charge.

- The Officer-in-charge shall be responsible for the following, namely-

(a)

security measure and periodical inspection thereof;

(b)

proper maintenance of building and premises;

(c)

prompt, firm and considerate handling of all disciplinary matters;

(d)

careful handling of plant and equipment;

(e)

accident preventive measures;

(f)

fire preventive measures;

(g)

segregation of a juvenile or child suffering from contagious or infectious diseases;

(h)

proper storage and inspection of food stuffs.

(i)

Stand-by arrangements for water storage, power plant, emergency lighting, etc.

(2)

In the event of an escape of a juvenile or a child, the following action shall be taken, namely--

(a)

The Officer-in-Charge shall immediately send the guards in search of the juvenile, at places like railway stations, bus stands and other places where the juvenile is likely to go.

(b)

The parent or guardians shall be informed immediately about such escape.

(c)

A report shall be sent to the area Police Station along with the details and description of the juvenile or the child, with identification marks and a photograph, with a copy to the Board and the authorities concerned.

(d)

The Officer-in-Charge shall hold an inquiry about such escape and send his report to the Board and the authorities concerned.

(3)

On the occurrence of any case of death or suicide the procedure to be adopted shall be as under;

(a)

If a juvenile or child dies within twenty four hours of his admission to the institution an inquest and post-mortem examination shall be held at the earliest.

(b)

Whenever a sudden or violent death, or death from suicide or accident takes place, immediate information shall be given to the Officer-in-Charge and the Medical Officer.

(c)

The Officer-in-Charge and the Medical Officer shall examine and inspect the dead body and in case a juvenile dies due to causes other than natural causes, or if the cause of death is not known, or if the death has occurred due to suicide, violence or accident, or whenever there is any doubt or complaint or question concerning the cause of death of any juvenile, the Officer-in-Charge shall inform the Officer-in-Charge of the Police Station having jurisdiction.

(d)

The Officer-in-charge shall also immediately give intimation to nearest Magistrate empowered to hold inquests.

(e)

The Medical Officer shall report to the Officer-in-charge about the happening of the natural death of a juvenile and see that the body is decently removed to the mortuary.

(f)

In case of natural death or due to illness of a juvenile or child of an observation home or special home, the Officer-in-charge shall obtain a report of the Medical Officer stating the cause of death and a written intimation about the death shall be given immediately to the nearest Police Station, the Board, the National Human Rights Commission and the authorities concerned.

(g)

The parents or guardians of the deceased juvenile shall be contacted and the Officer-in-charge shall wait for twenty-four hours for the arrival of relatives.

(h)

As soon as the inquest is held, the body shall be disposed of in accordance with the known religion of the juvenile.

(4)

In the event of any custodial rape or sexual abuse, the following action shall be taken, namely.

(a)

In case a resident makes any complaint, or occurrence of such rape or abuse comes to the knowledge of the Officer-in-charge, a report shall be placed before the Board, who shall order for special investigation and direct the local police station to register case against the person (s) found guilty under the relevant provisions of the Indian Penal Code, 1860 (45 of 1860).

(b)

The Special Juvenile Police Unit shall also take due cognizance of such occurrences and conduct necessary investigations.

(5)

In the event of any other offence committed in respect of residents, the Board shall take cognizance and arrange for necessary investigation to be carried out by Special Juvenile Police Unit.

18.

Leave of absence of a juvenile or child.

(1)

The juvenile or child of an institution may be allowed to go on leave of absence or released on license and stay with his family during examination, emergencies or special occasions like marriage in the family.

(2)

While the leave of absence for short period not exceeding seven days excluding the journey time maybe recommended by the Officer-in-charge, but granting of such leave shall be by the Board.

(3)

The parents or guardian of the juvenile or child may submit an application to the Officer-in-charge requesting for release of the juvenile or child on leave, stating clearly the purpose for the leave and the period of leave.

(4)

If the Officer-in-charge considers that granting of such leave is in the interest of the juvenile or child, he shall call for a report of the Probation Officer on the advisability of otherwise and forward the case to the Board.

(5)

While issuing orders sanctioning the leave of absence or release on license in Form VII, as the case may be, the competent authority shall mention the period of leave and the conditions attached to the leave order, and if any of these conditions are not complied with during the leave period, the juvenile or child may be called back to the institution.

(6)

The parent or guardian shall arrange to escort the Juvenile or child from and to the institution and bear the travelling expenses; whereas, in exceptional cases are during an emergency, the officer-in-charge may arrange to escort the Juvenile or Child to the place of the family and back.

(7)

If the juvenile or child runs away from the family during the leave period, the parent or guardian are required to inform the Officer-in-charge of the institution immediately, and try to trace the juvenile or child and if found, send the juvenile or child to the institution.

(8)

If the parent or guardian do not take proper care of the juvenile or child during the leave period or do not bring the juvenile or child back to the institution within the stipulated period, such leave may be refused on later occasions.

(9)

If the juvenile or child does not return to the institution on expiry of the sanctioned leave, the Board shall refer the case to police for taking charge of the juvenile or child and bring him back to the institution.

(10)

The period of such leave shall be counted as a part of the period of stay in the institution and the time which elapses after the failure of a juvenile or child to return to the institution within the stipulated period, shall be excluded while computing the period of his stay in the institution.

19.

Release.

(1)

The Officer-in-charge shall maintain a roster of the cases of juvenile or child to be released on the expiry of the period of stay as ordered by the Board.

(2)

Each case shall be placed before the Classification Committee for proper mainstreaming and with regard to cases in which the juvenile or child is kept for three maximum period, action may be initiated six months before they attain the age of eighteen years.

(3)

A timely information of the release of a juvenile or child and of the exact date . of release shall be given to the parent or guardian and the parent or the guardian shall be invited to come to the institution to take charge of the juvenile or child on that date.

(4)

If necessary, the actual expenses of the parent's or guardian's journey both ways and of the juvenile's or child's journey from the institution shall be paid to the parent or guardian by the Officer-in-charge at the ti me of the release of the juvenile or child.

(5)

If the parent or guardian, as the case may be, fails to come and take charge of the juvenile or child on the appointed date, the juvenile or child shall be taken by the escort of the institution, and in case of a girl, she shall be escorted by a female escort.

(6)

At the time of release or discharge, a juvenile or child may be provided with a set of summer or winter clothing, if the Officer-in-charge deems it necessary.

(7)

If the juvenile or child has no parent or guardian, he may be sent to an aftercare organisation, or in the event of employment to the person who has undertaken to employ the juvenile or child.

(8)

The Officer-in-charge of a girls institution, subject to the approval of the competent authority may get suitable girls above the age of eighteen years married according to the procedure laid down by that authority from time to time.

(9)

The Officer-in-Charge shall order the discharge of any juvenile or child, the period of whose detention has expired and inform the competent authority within seven days of the action taken, and if, the date of release falls on a Sunday or another public holiday, the juvenile or child may be released on the preceding day with an entry to that effect made in

the register of discharge.

(10)

The Officer-in-charge shall in appropriate cases, order the payment of subsistence money, at such rates as may be fixed from time to time and the railway or road, or both, fare, as the case may be.

(11)

In deserving cases, the Officer-in-charge may provide the juvenile with such small tools, as may be necessary, to start a work or business subject to such maximum cost as may be fixed by the institution.

(12)

The Officer-in-charge may, subject to the approval of the competent authority, allow at their own request such girls as have no place to go, to stay in the institution after the period of their stay is over, till the time some other suitable arrangements are made.

20.

Maintenance of case file.

(1)

The case file of each juvenile or child shall be maintained in the institution containing the following informations, so far as applicable-

(a)

report of the person or agency who produced the juvenile or child before the Board.

(b)

probation officer's report.

(c)

information from previous institution.

(d)

initial interview material, information from family members, relatives, community, friends and miscellaneous information;

(e)

source of further information;

(f)

observation reports from staff members,

(g)

reports from Medical Officer, Intelligence Quotient (I.Q) testing, aptitude testing, educational or vocational tests;

(h)

social history;

(i)

summary and analysis by Officer-in-charge;

(j)

initial classification sheet;

(k)

instruction regarding training and treatment programme and about special precautions to be taken;

(l)

leave and other privileges granted;

(m)

violation of rules, if any, and special achievements;

(n)

quarterly progress report from various sections;

(o)

review sheet;

(p)

Monthly Cycle (m .c.) report (in case of girls);

(q)

pre-release programme;

(r)

final progress report;

(s)

leave of absence release on license;

(t)

final discharge;

(u)

follow-up reports;

(v)

central index number;

(w)

annual photograph; and

(x)

remarks.

(2)

All the case files maintained by the Institutions and the Board shall, as far as practicable, be computerised and networked so that the data is centrally available.

21.

Production of a Juvenile.

(1)

As soon as a juvenile in conflict with the law is apprehended by the police, the police shall place the juvenile under the charge of the special juvenile police unit, or the designated police officer.

(2)

The special juvenile police unit to which the juvenile is brought shall inform the probation officer concerned of such apprehension, to obtain information regarding the antecedents and family background of the juvenile and other material circumstances likely to be of assistance to the Board for making the inquiry.

(3)

Period to production of a juvenile before the Board, the juvenile may be placed in a safe place within the Police Station, (which shall not be a lock up), or in a place of safety.

(4)

The special juvenile police or the designated police officer shall produce the juvenile before the Magistrate or a member of the Board within twenty four hours of his apprehension (excluding the time taken to bring the juvenile from the police Station or place of safety to the Board).

(5)

In case of delay in production before the Magistrate or the Board, the details of not doing so be recorded in the police daily or general diary.

(6)

In case a recognized voluntary organisation takes a juvenile to the Board, the voluntary organisation shall also inform the concerned Police Station.

(7)

The State Government shall recognize only those registered voluntary organisations which can provide the services of probation, counselling, case work, a place of safety and also associate with the Special Juvenile Police Unit and are willing and have the capacity, facilities and expertise to do so.

(8)

The registered voluntary organisation shall prepare a report narrating the circumstances of apprehension and offence committed and produce the juvenile before the Board or Police with the report.

(9)

When a juvenile is produced before an individual member of the Board, the order given by the member shall be ratified in the next meeting of the Board.

(10)

The police or the recognized voluntary organisation shall be responsible for the safety and basic amenities to the juveniles apprehended or kept under their charge during the period they are with them.

22.

Procedure to be followed by a Board in holding inquiries and the determination of age.

(1)

In all cases under the Act the proceedings shall be conducted in as simple a manner as possible and care shall be taken to ensure that the juvenile or child against whom the proceedings have been instituted is given home like atmosphere during the proceedings.

(2)

When witnesses are produced for examination, the Board shall be free to use the power under Section 165 of the Indian Evidence Act, 1872 (

1 of 1872

). to question them so as to bring out any point that may go in favour of the juvenile or the child.

(3)

While examining a juvenile or child and recording his statement, the competent authority shall be free to address the juvenile or child in any manner that may seem suitable, in order to put the Juvenile or Child at ease and to elicit the true facts, not only in respect of the offence of which the juvenile or child is accused, but also in respect of the home and social surrounding and the influence to which the juvenile or child might have been subjected.

(4)

The record of the examination shall be in such form as the Board may consider suitable having regard to the contents of the statement and circumstances in which it was made.

(5)

In every case concerning a juvenile or a child, the Board shall either obtain-

(i)

a birth certificate given by a corporation or a municipal authority, or

(ii)

a date of birth certificate from the school first attended; or

(iii)

matriculation or equivalent certificates, if available; and

(iv)

in the absence of (i) to (iii) above, the medical opinion by a duly constituted Medical Board, subject to a margin of one year in deserving cases for the reasons to be recorded by such Medical Board.

regarding his age, and when passing orders in such case shall, after taking into consideration such evidence as may be available or the medical opinion, as the case may be, record a finding in respect of his age.

(6)

The State Government shall recognise registered voluntary organisation, to supervise and submit periodical reports, as directed by the Board regarding the orders passed under clauses (b) and (c) of sub-section (1) of Section 15 of the Act.

(7)

In accordance with the rules made under sub-section (2) of Section 10 of the Act, the Board shall, in Form-1, order a Probation Officer, or otherwise to conduct a social investigation, reporting on the character and antecedents of the juvenile or child with a view to assessing the best possible mode for placement, such as with the family an institution or otherwise permissible under the Act.

(8)

When a juvenile or child is placed under the care of a parent or a guardian and the Board considers it expedient to place the juvenile or child under the supervision of a probation officer, it shall issue a supervision order in Form-II.

(9)

The competent authority may, while making an order placing a juvenile under the care of a parent, guardian or fit person, as the case may be, direct such parent, guardian or fit person to enter into a bond in Form IV with or without sureties.

(10)

Whenever the Board orders a juvenile or child to be kept in an institution, it shall forward to the Officer-in-charge of such institution a copy of its order, in Form III with particulars of the home and parents or guardian and previous record.

(11)

The juvenile or child shall be lodged in a home closest to where he belongs.

(12)

The Officer-in-charge of an institution, certified as special home under subsection (2) of Section 9 of the Act shall be informed in advance by the Board before any juvenile or child is committed to it.

(13)

The Officer-in-charge of the said institution may, on receipt of the information intimate in writing objections, if any, to the committal of the juvenile or child and the objections shall be taken into consideration by the Board before the juvenile or child is committed to the said institution.

(14)

In case the Board orders the parent of the juvenile or child, or the juvenile or child to pay a fine and the amount realized shall be deposited in the government treasury.

23.

Procedure in respect of Sections 23,24,25 and 26 of the Act.

- The offences against the juvenile or child specified in Sections 23,24,25, and 26 shall be either bailable or not-bailable besides being cognizable under the provisions of the Code of Criminal Procedure Act, 1973 (

2 of 1974

) and the provisions of bail or otherwise, shall apply on the Police, the Board and the concerned accordingly.

Chapter III

Child In Need of Care and Protection

24.

Child Welfare Committee.

(1)

The Committee shall consist of a Chairperson and four that members as the State; Government may think fit to appoint of whom at least one shall be a woman and another, an expert on matters concerning children.

(2)

The Chairperson and members of the Committee shall be appointed on the recommendation of a Selection Committee set up by the State Government, for the purpose.

(3)

The Selection Committee shall consist of following seven members, namely.

(i)

a retired Judge of the High Court or retired Secretary to the State Government having experience in social welfare shall be the Chairperson of the Selection Committee;

(ii)

two representatives of reputed non-governmental organizations working in the area of child welfare;

(iii)

a representative from an academic body;

(iv)

two representatives of the concerned department of the State Government; and

(v)

a representative of the State Human Rights Commission or such recognized agency or cell or a retired special Judicial Magistrate.

(4)

The Selection Committee shall take into consideration the panel of names recommended by the concerned local authority, who could be considered for selections of members of the Committee.

(5)

The Selection Committee shall also prepare a list of names for each Committee to fill in vacancies, which may arise during the tenure of the Committee.

(6)

A person to be selection as a member of the Committee shall have either of the following qualifications, in addition to five years experience in their respective field, namely.-

(a)

a respectable, well educated citizen with the background of special knowledge of social work, child psychology, education, sociology or home science; or

(b)

a teacher or a doctor or a senior retired public servant who has been involved in work concerning child welfare; or

(c)

a social worker of repute, who has been directly engaged in child welfare.

(7)

The Chairperson of the Committee shall be at least a graduate with either of the qualifications given in sub-rule (6).

(8)

The Committee shall have a tenure of three years and the appointment of members shall be co-terminus with the tenure of the Committee.

(9)

A member of the Committee shall be eligible for appointment for a maximum of two terms.

(10)

A member may resign at any time by giving one month's notice in writing.

(11)

Any casual vacancy on the Committee may be filled by appointment of another person from the list or panel prepared by the Selection Committee, and shall hold office for the remaining term of the committee.

(12)

The members of the Committee shall be paid such travelling or meeting allowance or honorarium as the State Government may decide from time to time.

25.

Procedure etc. in relation to Committee.

(1)

The Committee shall hold its settings in the premises of a children's home and shall meet at least three days a week.

(2)

Any decision for the meeting shall be three members attending, which may include the Chairperson.

(3)

Any decision taken by an individual member, when the Committee is not sitting, shall require ratification by the Committee in its next sitting.

(4)

The final disposal of cases relating to children in need of care and protection, shall take place from the office of the Committee, by the order of at least two members.

(5)

The Committee shall take into consideration the age, physical and mental health background, opinion of (he child and the recommendation of the caseworker, prior to disposal of such cases.

26.

Production of a Child before the Committee.

(1)

Any child in need of care and protection shall be produced before the Committee by one of the following persons.-

(i)

any police officer or Special Juvenile Police Unit or a designated police officer;

(ii)

any public servant;

(iii)

Childline, a registered voluntary organisation, or by such other voluntary organisation or an agency as may be recognised by the State Government;

(iv)

any social worker or a public spirited citizen authorized by the State Government; or

(v)

by the child himself.

(2)

When any person or organisation authorized under sub-rule (1) receives a child in need of care and protection, he may produce the child before the Committee with the report of the circumstances under which the child came to his notice.

(3)

A child, above two years of age, shall be produced before the Committee within forty eight hours of such admission, excluding the journey time taken by the person or the organization, and for children under two years of age, the person or the organization shall send a written report along with the photograph, within forty eight hours of admission, excluding the journey time.

(4)

In case the Committee is not sitting, the child shall be kept in a place of safety and provided with all basic facilities and adequate protection.

(5)

Every possible effort shall be made to trace and associate the family and assistance of recognised voluntary organisation or childline may also be taken.

(6)

In case a recognised voluntary organization takes a child to the Committee, they shall also submit a report on the circumstances under which the child came to their notice, and efforts shall be made by them for tracing the family.

(7)

The Committee shall make arrangements to send the child to the designated place of safety, with age and sex appropriate facilities, pending by the inquiry.

(8)

The child may be escorted by the police officer or representative of the voluntary organization or by any other arrangement as considered appropriate by the Committee.

(9)

A list of the names and addresses of all recognised children homes along with its capacity, appropriate facilities as prescribed under Section 34 of the Act, shall be listed with the Committee.

(10)

The competent authority may, while making an order placing a child under the care of a parent, guardian or fit person, as the case may be, direct such parent, guardian or fit person to enter into a bond in Form IV with or without sureties.

(11)

Whenever the Committee orders a child to be kept in an institution, it shall forward to the Officer-in-charge of such institution a copy of its order, in Form III with particulars of the home and parent or guardian and previous record.

(12)

The child shall be lodged in a home closest to where he belongs.

27.

Procedure for inquiry.

(1)

When a child is brought before the Committee, the Committee shall assign the case to a social worker or case worker or child welfare officer or Officer-in-Charge, as the case may be, of the home or any recognised agency for conducting the inquiry.

(2)

The direction for the inquiry under sub-rule (1) shall be give in Form-1

(3)

The Committee shall direct the concerned person or organisation about the details or particulars to be enquired into for suitable rehabilitation.

(4)

The inquiry must be completed within four months unless special circumstances do not permit to do so in the interest of the child, and for which a written extension must be taken by the inquiring officer or the agency under subsection (2) of Section 33 of the Act.

(5)

After completion of the inquiry, if, the child is under orders to continue in the children's home, the Committee shall carry

out an annual review of the progress of the child in the home.

28.

Children's Home.

(1)

The State Government it self or in association with voluntary organisation, shall set up separate homes for children in need of care and protection, in the manner specified below.-

(a)

while children of both sexes below ten years, may be kept in the same home but separate facilities shall be maintained for boys and girls in the age group 5 to 10 years.

(b)

separate children's homes shall be set up for boys and girls in the age group 10 to 18 years.

(2)

Each children's home shall be a comprehensive child care centre with the primary objective to promote an integrated approach to child care by involving the community and local Non-Governmental Organizations, (NGOs).

(3)

The activities of such centre shall focus on.-

(a)

family based services, such as, foster family care, adoption and sponsorship;

(b)

specialized services in conflict or disaster affected areas to prevent neglect by providing family counseling, sponsorship, play groups; etc.

(c)

provision of childline and emergency out reach service through 1098, a free phone facility for children;

(d)

linking up with integrated Child Development Services (ICDS) to cater to the needs of children below six years.

(e)

to establish linkages with organisations and individuals who can provide support services to children; and

(f)

to encourage volunteers to provide for various services for children and families to become guardian.

(4)

Every children's home shall have the following facilities, namely.-

(a)

Physical infrastructure. - (i) It shall include separate facilities for children in the age group of 0-5 years with appropriate facilities for the infants.

(ii)

The facilities to be created for children in the age group of 6-10 years having separate dormitories for boys and girls.

(iii)

The standard of accommodation as specified in rule 9 shall apply.

(iv)

There shall be adequate lighting, ventilation, heating and cooling arrangements, drinking water and toilets, in terms of age appropriateness and hygiene.

(b)

The clothing and bedding shall be according to season and age appropriate as per scale mentioned in rule 7 of these rules.

(c)

Nutrition. - (i) The children shall be provided 4 meals including breakfast in a day.

(ii)

The menu shall be prepared with the help of a nutritional expert or doctor to ensure balanced diet and variety in taste.

(iii)

Children may be provided special meals of holidays.

(iv)

The diet of infants and sick children shall be according to the requirement.

(v)

The normal dietary scale for children upto 18 years shall be according to scale mentioned in rule 6 of these rules.

(d)

Medical. - (i) The children's home shall have arrangement for the medical facility preferably with doctor and nurse.

(ii)

All children brought into the home shall be medically examined initially within 24 hours of arrival.

(iii)

The routine medical checkup of the children must be done on monthly basis.

(iv)

The sick children shall constantly be under medical supervision.

(v)

In the event of break out of contagious or infectious diseases segregation must be ensured.

(vi)

The medical service shall include immunization facility as specified under the National immunization Schedule.

(vii)

The home shall have networking with local doctors and hospitals for referral cases.

(viii)

The medical record of each child shall be meticulously maintained in the file of the child which shall also include weight and height record, any sickness and treatment and other physical or mental problem, if any.'

(e)

Education. - The children's home shall provide education to all children according to the age and ability, other both inside the home or outside, as per the requirement.

(f)

Vocational Training. - (i) Every children's home shall facilitate for useful vocational training under the guidance of trained instructors.

(ii)

The home shall develop networking with institute of Technical Instruction (ITI), Jan Shikshan Sansthan, Government and Private Organisation or Enterprises, Agencies or Non-Governmental Organisation (NGOs) with expertise, or placement agencies.

(g)

Counselling. -(i) Each home shall have the services to a trained counsellor.

(ii)

The services of Child Guidance Centres, Psychology and Psychiatric Departments or similar Agency may also be availed.

(h)

Recreation facilities. - It must include indoor and outdoor games, music, television, picnics and outings, cultural programmes etc.

(i)

Care Plan - (i) The incharge, counsellor along with the child welfare, officer, case worker, or social worker shall prepare a care plan for every child in the home.

(ii)

The care plan shall be reviewed from time to time for appropriate development and rehabilitation including options for restoration to family or foster care or adoption and review shall not be delayed beyond a year.

(iii)

The focus shall be on providing family and community based re-integration programmes.

(iv)

Children shall be consulted while determining their care plan.

(j)

Intake Procedure. - (i) Every new child who is brought to home, shall immediately be taken charge of by the counsellor or child welfare officer or designated officer, as the case may be.

(ii)

The child shall be received with due care as provided under these rules, with dignity and love.

(iii)

A brief orientation shall be given to the child on induction, to remove any inhibition from the mind of the child.

(iv)

The child shall be immediately given bath, clothing, food etc., and medically examined.

(v)

The designated officer shall enter the name of the child in the Admission Register and allocate appropriate accommodation facility.

(vi)

The photograph shall also be taken immediately for records and the careworker shall begin the investigation and correspondence with the person, the child might have named.

(vii)

The Officer-in-charge shall see that personal belonging of every child received by the home is kept in safe custody and recorded in the Personal Belonging Register and the item must be returned to the child when he leaves the home.

(viii)

The girl child shall be searched by a female member of the staff, and with due regard to decency.

(ix)

The articles mentioned under rule 14 of these rules shall also be prohibited in case of children's homes.

(k)

In the event of a child leaving to home without permission, the information shall be sent to the police and the family, if known, and the detailed report along with the efforts to trace the child shall be sent to the committee for information in the subsequent sitting of the Committee.

(l)

Death of a child. - (i) In the event of death of a child, the circumstances of the death shall be recorded in the case file of the child, by the case worker giving the cause of death and the death certificate shall be obtained from the attending doctor or hospital as the case may be.

(ii)

The information shall be sent to the Committee and District Level Inspection Team, Registrar of Births and Deaths, and the relative, if known.

(iii)

The last rites shall be performed according to the known religion of the child.

(m)

In the event of custodial rape or sexual abuse, the action to be taken shall be as follows.

(i)

In case any resident makes any complaint, or occurrence of such nature comes to the knowledge of the Officer-in-charge, a report shall be placed before the Committee, who in turn, shall order for special investigation.

(ii)

The Committee shall direct the local police station to register case against the person found guilty under the relevant provisions of the Indian Penal Code, 1860 (45 of 1860).

(iii)

The special Juvenile Police Unit shall also take due cognizance of such occurrences and conduct necessary investigations.

(n)

In the event of any other crime committed in respect of residents, the Committee shall take cognizance and arrange for necessary investigation to be carried out by the Special Juvenile Police Unit.

(o)

Record keeping. - All the case files of the children maintained by the institutions and the Committee shall be computerized and networked so that the data is centrally available.

29.

Inspection.

(1)

The State Government shall constitute State, District or city level inspection teams on the recommendation of Selection Committee, constituted under sub-rule (3) of rule, 24, for a period of three years to visit and oversee the day to day functioning of the Homes and give suitable directions to be followed by them.

(2)

The team shall also make suggestions for the improvement and development of the institution.

(3)

The team shall consist of a minimum of five members from the representatives of the State Government, local authority, the Committee, medical and other experts, voluntary organisations and reputed social workers.

(4)

The inspection visit shall be carried out by not less than three members.

(5)

The team may visit the homes either by prior intimation or by surprise.

(6)

The team shall interact with the children during the visit to the institution, to determine their well being and uninhibited feed back.

(7)

The follow up action on the findings and suggestion of the children shall be taken by all concerned authorities.

30.

Social Auditing.

- The Central Government or the State Government shall monitor and evaluate the functioning of the children's homes annually with the help of organizations working with the children and autonomous bodies like the National Institute of Public Co-operation and Child Development, Indian Council for Child Welfare, Indian Council for Social Welfare, Indian Social Institute, Children India Foundation, National Institute of Social Defence, Central and State level Social Welfare Boards and School of Social Work.

31.

Shelter Homes.

(1)

For the children in urgent need of care and protection, such as destitute, street children and run-away children, the State Government shall support creation of the requisite number of shelter homes or drop-in-centres through the voluntary organisations.

(2)

The shelter homes or drop-in-centres shall have the minimum facilities of boarding and lodging, besides the provision for fulfilment of basic needs in terms of clothing, food, health care and nutrition.

(3)

Such children in crisis situations may live in short-stay homes which may have the requisite facilities for education, vocational training and recreation as well.

(4)

The Committee, Special Juvenile Police Units, public servants, Children, voluntary organisations, social workers and the children themselves may refer a child to such shelter homes.

(5)

The requirements of investigation and disposal shall not apply in cases of children residing in the shelter home, except giving information to the Committee and the police about the missing or homeless children, besides initiating legal action in the interest of the child in terms of the Act or other child related laws.

(6)

The services of Officer-in-charge, child welfare officer, social worker shall be provided for the proper care, protection, development, rehabilitation and reintegration needs of such children.

(7)

No child shall ordinarily stay in the Government funded shelter home or drop-in-centre for more than a year.

32.

Transfer.

(1)

During the enquiry, if it is found that the child hails from the place outside the jurisdiction of the Committee, the Committee shall order the transfer of the child to the competent authority having jurisdiction over the place of residence of the child.

(2)

No child shall be transferred or proposed to be transferred only on the ground that the child has created problems or has become difficult to be managed in the existing institution.

(3)

The transfer for restoration or enquiry for all proceedings in respect of a child from one state institution to other may also be ordered by the local authority after obtaining concurrence from the Committee.

(4)

No child shall be transferred out of the district or city for the purposes of adoption without the concurrence of the Committee.

(5)

On receipt of transfer order from the local authority, the Officer-in-charge shall arrange to escort the child at the Government expenses to the place or person as specified in the order.

(6)

On such transfer, the child case file and records shall be sent along with the child.

Chapter IV

Rehabilitation and Social Reintegration

33.

Adoption.

(1)

As the family is the best option, to provide care and protection for children, adoption shall be the first alternative for rehabilitation and social reintegration of children who are orphaned, abandoned, neglected and abused.

(2)

The guidelines on adoption, issued by a State Government under sub-section (3) of Section 41 of the Act, the Supreme Court and the Central Adoption Resource Agency (CARA) from time to time, shall apply.

(3)

The State Government shall recognize children's homes or State run Government homes for orphans, as adoption agencies both for scrutiny and placement of such children for in-country adoption.

(4)

In the case of inter-country adoption, the procedure laid down by the CARA shall apply.

(5)

The scrutiny shall be done independently by an agency recognised for this purpose.

(6)

The scrutinizing agency shall examine all available informations and verify the background of the child before making a recommendation to the Board for adoption of the child.

(7)

Any child who is eligible for adoption and residing in an unrecognized home, shall for the purpose of adoption, be transferred to a recognized home.

(8)

An abandoned child can be given in adoption only when the Committee declares such a child to be legally free for adoption and an order to that effect is signed by at least two members or the Committee.

(9)

Before declaring the child as abandoned and certifying him as legally free for adoption, the Committee shall institute a process of enquiry, which shall include.-

(a)

A through enquiry by the probation officer or case workers or police, as the case may be, shall be conducted and a report containing findings submitted within a maximum period of one month;

(b)

Declaration by the placement agency, stating that there has been no claimant for the child even after making notification in at least one leading newspaper including a regional language newspapers, Television and Radio announcement and after waiting for a period of one month, the time which shall run concurrently to the inquiry to be conducted and report submitted under clause (a) of this sub-rule.

(c)

The Committee shall make a release order declaring the child legally free for adoption within the period of six weeks from the date of application in the case of children below the age of two years, and three months in the case of children above that age;

(d)

No child above seven years who can understand and express his opinion shall be placed in adoption without his consent.

(10)

Role of licensed or recognised Government and non-Government agencies for adoption. - (a) In the case of an abandoned child the recognised agency shall within forty eight hours report to the Committee along with the copy of the report filed with the police station in whose jurisdiction the child was found abandoned.

(b)

The adoption agency may initiate the process of clearance at the earliest, in the case of abandoned children, for the purpose of adoption within a period of two months and for placing application before the Committee for declaring the child legally free for adoption.

(c)

In case of a child surrendered by his biological parent or parents by executing a document of surrender, the adoption agency shall make an application directly to the Board for giving the child in adoption.

(d)

The adoption agencies shall wait for completion of two months reconsideration time given to the biological parent or parents.

(e)

Serious efforts shall be made for counselling the parents, so as to persuade them to retain the child and if, the parents are still unwilling to retain, then, such children shall be kept initially in foster care or arranged for their sponsorship.

(f)

In the case of a surrendered or abandoned child who is legally free for adoption, the licensed agency shall have discretion to place the child in pre-adoption foster care under intimation to the Board, within one week of its placement pending the final order.

(11)

Role of Juvenile Justice Board. - (a) After receiving an application from a recognised agency for adoption, the Board shall call for an independently enquiry by a recognised scrutiny agency, which shall submit its report within a period of two weeks.

(b)

The Board shall undertake a process of enquiry which shall include interviewing the prospective parents, verifying the documents and scrutiny reports.

(c)

If the Board, is satisfied that the placement is in the best interest of the child, it shall pass a final order giving permanent custody of the child to the adoptive parent or parents.

(d)

The order of adoption shall be signed by the principal Magistrate besides at least one of the two members of the Board.

(e)

The Board shall determine and fix the date of birth, in the best interest of the child and shall pass order to the appropriate authority to issue a regular birth certificate for the child giving the name(s) of the adoptive parent (s) as if in the case of natural born children.

(f)

As far as practicable, the time taken for passing an adoption order, shall not exceed two months from the date of filling of application.

(g)

The order shall also include provision for a periodic follow up report either by the probation officer or case worker or adoption agency to ensure the well being of the child and the period of such follow up shall be three years six monthly in the first year and annually for the subsequent two years.

34.

Foster Care.

(1)

A child to be placed under short-term foster care shall be done according to the procedure laid down in clause (f) of sub-rule (10) of rule 33, and the short-term foster care period shall not exceed four months.

(2)

The temporary foster care shall be carried out, as given in sub-section (2) of Section 42 of the Act, by the competent authority under the supervision of a probation officer or case worker or social worker, as the case may be, in Form II and the total period of temporary foster care shall not exceed five years.

(3)

The following criteria shall be applied for selection of families for temporary foster care:-

(a)

foster parent (s) should have stable emotional adjustment within the family;

(b)

foster parent (s) have an income to meet their needs and not dependent on the foster care maintenance payment;

(c)

The monthly family income shall not be less than rupees five thousand per month;

(d)

medical reports of all the members of the family residing in the premises should be obtained including checks on Human Immuno Deficiency Virus (HIV), Tuberculosis (TB) and Hepatitis B to determine that they are medically fit;

(e)

an update should be done at regular intervals of not less than once in a calendar year;

(f)

the foster mother should have experience in child caring and the capacity to provide good child care;

(g)

the foster mother should be physically, mentally and emotionally stable.

(h)

the home should be adequate space and physical facilities.

(i)

the foster care family should be willing to follow rules laid down including regular visits to pediatrician, maintenance of child health, record etc.;

(j)

the family should be willing to sign an agreement and to return the child to the agency whenever called to do so;

(k)

the foster mother should be willing to attend training or orientation programmes;

(l)

the foster parent (s) should be willing to take the child for regular (at least once a month in the case of infants) checkups to a pediatrician approved by the agency.

(4)

There shall be regular monitoring and supervision carried out by the Probation Officer or the Child Welfare Officer, as the case may be.

35.

Sponsorship.

(1)

The children's homes and special homes shall promote sponsorship programmes as laid down in Section 43 of the Act.

(2)

The homes receiving sponsorship shall maintain proper and separate accounts of all the receipts and payments for the

programme.

36.

After Care Organization.

(1)

The alter care organization, as outlined in the Act, are to take care of juveniles or children after they leave special homes and children's homes.

(2)

These after care organizations are essential for all children or youth between the age of 18 to 20 years, and as such, this age group is most vulnerable and need care, guidance and protection.

(3)

The objective of these homes shall be to enable such children to adapt to the society and during their stay in these transitional homes these children will be encouraged to move away from an institution-based life to a normal one.

(4)

The target groups will include juvenile or children who have either left special homes or children's homes.

(5)

The key components of the model include setting up of temporary homes for a group of youths, who can be encouraged to learn a trade and contribute towards the rent as well as the running of the home.

(6)

There shall also be provision for a peer counsellor, who will be in regular contact with these youths to discuss their rehabilitation plans and provide creative outlets for their energy and to tide over crisis periods in their life.

(7)

The programmes under the scheme shall include.-

(i)

Facilitating employment generation for these youths will be a key programme.

(ii)

After a youth has saved a sufficient amount, he can be encouraged to state in a place of his own and move out of the group home.

(iii)

The youth may continue staying in the home and return the deposit to the Non-Governmental organisation (NGOs).

(iv)

The youth learning a vocational trade can be given a stipend, which may be stopped once the youth gets a job.

(V)

Loans to these youth to set up entrepreneurial activities may also be arranged.

(vi)

A peer counsellor shall also be made available for youth at these homes, as at this stage of life, they can be lured into crime or drug dependence and such other habits deviant behaviour.

(8)

The strategy for children who have been juveniles or have left special homes shall be to help them to return to normal life and ail just and adapt to their environment.

(9)

There shall be provision for vocational training of these children to enable them to sustain themselves through their own efforts.

(10)

Structure. - One peer counsellor can be made in-charge of a cluster of five homes and each home may house 6 to 8 youths who may opt to stay together on their own.

Chapter V

Miscellaneous

37.

Recognition of fit person or fit institution.

(1)

Any individual or a suitable place or institution, the occupier or manager of which is willing temporarily to receive a

juvenile or child in need of care, protection or treatment for a period as may be necessary, may be recognised by the competent authority as a fit person or a fit institution.

(2)

Any association or body of individuals, whether incorporated or not, established for or having for its object the reception or protection of juveniles or children, or the prevention of cruelty to juvenile, and which undertakes to bring or to give facilities for bringing up any juvenile entrusted to its care in conformity with the religion of his birth, may be included within the meaning of fit institution.

(3)

A list of names and the addresses of fit persons and fit institutions approved by the competent authority shall be kept in the office of the Board and the Committee and shall be used when necessary.

(4)

After committal of a juvenile or a child by the competent authority to an institution recognised as a fit institution with collateral branches, the manager of such institution may send the juvenile to any of the branches of such institution after giving an intimation to the competent authority under whose orders the juvenile or the child was committed.

(5)

Before declaring any person or institution as a fit person or a fit institution, the competent authority shall hold due enquiry and only on being satisfied, recognition shall be given.

38.

Certification or recognition and transfer of Management of Institutions.

(1)

If the management of any organisation desires that its organisation may be certified or recognised under the Act, the same shall make an application together with a copy each of the rules, bye-laws articles of associations, list of members of the society or the association running the organization, office bearers and a statement showing the status and past record of social or public service provided by the organisation, to the State Government, who shall after verifying the provisions made in the organization for the boarding and lodging, general health educational facilities, vocational training and treatment services may grant certification or recognition under Sections 8,9,34, 37 and 11 of the Act, as the case may be, on the condition that the organisation shall comply with the standard or services as laid down under the Act and the rules framed their under, from time to time and to ensure an all round growth and development of juvenile or child placed under its charge.

(2)

The State Government may, transfer the management of any State run institution under the Act to a voluntary organisation of repute, who has the capacity to run such an institution, and certify the said voluntary organisation as a fit institution to own the requisite responsibilities under a memorandum of Understanding for a specified period of time.

(3)

The institution and the infrastructure already available with the State Government in relation to the Juvenile Justice Act, 1986 shall be suitably used for implementing the Act.

(4)

The State Government may, if dissatisfied with the conditions, rules, management of the organisation certified or recognised under the Act, at any time, by notice served on the manager of the organization, declare that the certificate or recognition of the organization, as the case may be, shall stand withdrawn as from a date specified in the notice and from the said date, the organisation shall cease to be an organisation certified or recognised under Sections 8,9,34,37, or 44 of the Act, as the case may be.

Provided that the concerned organization shall be given an opportunity of making a representation in writing, within a period of thirty days, against the grounds of withdrawal of certificate or recognition of that organization.

(5)

The decision to withdraw or to restore the certificate, or recognition of the organisation may be taken, on the basis of a thorough investigation by a specially constituted advisory board under Section 62 of the Act.

(6)

On the report of the advisory board, the Officer-in-charge of the home shall be asked to show cause so as to give an explanation within thirty days.

(7)

When an organisation cases to be an organisation, certified or recognised under Sections 8, 9, 34, 37 or 44 of the Act, the juvenile or the child kept therein shall, under the orders of the designated officer empowered in this behalf by the State Government, be either-

(a)

discharged absolutely or on such conditions as the officer may impose; or

(b)

transferred to some other institution established certified or recognised under Sections 8,9,34,37 or 44 of the Act, in accordance with the provisions of the Act and the rules relating to their discharge and transfer by giving intimation of such discharge or transfer to the Board or the Committee, as the case may be.

39.

Grant in aid to certified or recognized organization.

(1)

An organization certified or recognised under Sections 8,9,34,37 or 44 of the Act, may during the period when certification or recognition is in force, may apply for grants-in-aid by the State Government, for the maintenance of juvenile or child received by them under the provisions of the Act; and for expenses incurred on their education, treatment, vocational training, development and rehabilitation.

(2)

The grants-in-aid may be admissible, at such rates, which shall be sufficient to meet the prescribed norms, in such manner and subject to such conditions as may be mutually agreed to by both the parties.

(3)

In case of transfer of management of government run homes under Sections 8.9, 34, and 37 of the Act to a voluntary organisation, the same budget which the Government was spending on that home, shall be given to the voluntary organisation as grant-in-aid under the Memorandum of Understanding signed between both the parties describing their role and obligations.

40.

Admission of outsiders.

- No stranger shall be admitted to the premises of the institution, except with the permission of the Chief Inspector or Officer-in-charge.

41.

Identity Photos.

(1)

On admission to a home established under the Act, every juvenile or the child shall be photographed and three copies of the photograph shall be obtained.

(2)

One photograph shall be kept in the case file of the juvenile or the child, one shall be fixed with the index card and the third copy shall be kept in an album serially with the negative in another album.

42.

Police Officers to be in plain clothes.

- While dealing with a juvenile or a child under the provisions of the act and the rules made thereunder, except at the time of arrest, the Police Officer shall wear plain clothes and not the police uniform.

43.

Prohibition on the use of handcuffs and fetters.

- No juvenile or the child dealt with under the provisions of the Act and the rules made thereunder shall be handcuffed or fettered.

44.

Visitor's Book.

(1)

A Visitor's Book shall be maintained, in every institution, in which the person visiting the home shall record the date of his visit with remarks or suggestions, which he may think proper.

(2)

The Officer-in-charge shall forward a copy of every such entry to the designated authority and the local authority, with

such remarks as he may desire to offer in explanation or otherwise, and thereon the designated authority shall issue such orders as he may consider necessary.

45.

Maintenance of Registers.

- The Officer-in-charge shall maintain in his office, such registers and forms, as required by the Act and as specified by the rules made thereunder.

46.

Procedure for sending a juvenile or child outside the jurisdiction of the competent authority.

(1)

In the case of a juvenile or a child whose ordinary place of residence lies outside the jurisdiction of the competent authority, and if the competent authority considers it necessary to take action under Section 50 of the Act, it shall direct a probation officer to make enquiries as to the fitness and willingness of relative or other person to receive the juvenile or the child at the ordinary place of residence, and whether such relative or other fit person can exercise proper care and control over the juvenile or the child.

(2)

Any juvenile or a child, who is a foreign national and who has lost contact with his family shall also be entitled for protection.

(3)

The juvenile or the child who is a foreign national, shall be repatriated, at the earliest, to the country of his origin in co-ordination with the Ministry of External Affairs and respective Embassy or High Commission.

(4)

On being satisfied with the report of the probation officer or case worker or child welfare officer, as the case may be, the competent authority may send the juvenile or the child, if necessary on execution of a bond by the juvenile, as nearly as in Form V, to the said relative or fit person on giving an undertaking by the said relative or fit person in Form VI.

(5)

A copy of the order passed by the competent authority under Section 50 shall be sent to-

(a)

the probation officer who was directed to submit a report under sub-rule (1);

(b)

the probation officer, if any, having jurisdiction over the place where the juvenile or the child is to be sent;

(c)

the competent authority having jurisdiction over the place where the juvenile or the child is to be sent; and

(d)

the relative or the person who is to receive the juvenile or the child.

(6)

Any breach of a bond or undertaking or of both given under sub-rule (4), shall render the juvenile or the child liable to be brought before the competent authority, who may make an order directing the juvenile or the child to be sent to a home.

(7)

During the pendency of the order under sub-rule (4), the Juvenile or the child shall be sent by the competent authority to an observation home or children home.

(8)

Where in the case of a juvenile or a child, the competent authority considers it expedient to send the juvenile or the child back to his ordinary place of residence under Section 50, the competent authority shall inform the relative or the fit person, who is to receive the juvenile or the child accordingly, and shall invite the said relative or fit person to come to the home, to take charge of the juvenile or the child on such date, as may be specified by the competent authority.

(9)

The competent authority inviting the said relative or fit person under sub-rule (8) may also direct if necessary the payment to be made by the Officer-in-charge of the home, of the actual expenses of the relative or fit person's journey both ways, by the appropriate class and the juvenile's or child's journey from the home to his ordinary place of residence, at the time of sending the juvenile or the child.

(10)

If the relative or the fit person fails to come to take charge of the juvenile or the child on the specified date, the juvenile or the child shall be taken to his ordinary place of residence by the escort of the observation home and in the case of a girl, at least one escort shall be a female.

47.

Mode of Dealing with Juvenile or Child suffering from dangerous diseases or mental complaint.

(1)

When a juvenile or a child kept in a home under the provisions of the Act, or placed under the care of a fit person or a fit institution, is found to be suffering from a disease, requiring prolonged medical treatment or physical or mental complaint, which will respond to treatment or is found addicted to a narcotic drug or psychotropic substance the juvenile or the child may be removed by an order of the authority empowered on this behalf to an approved place set up for such purpose for the remainder of the term for which he has to stay, under the order of the competent authority of for such period as may be certified by medical officer to be necessary for the proper treatment of the juvenile or the child.

(2)

Where it appears to the authority ordering the removal of the juvenile or the child under sub-rule (1) that the juvenile or the child is cured of the disease or physical or mental complaint, he may, if the juvenile or the child is still liable to stay, order the person having in charge, to send the juvenile or the child to the home or fit person from which or from whom he was removed or if the juvenile or the child is no longer liable to be kept in home, order him to be discharged.

(3)

Where action has been taken under sub-rule (1), in the case of a juvenile or a child suffering from an infection or contagious disease, the authority, empowered under the sub-rule (1), before restoring the said juvenile or child to his partner in marriage or to the guardian, as the case may be, shall where it is satisfied that such action shall be in the interest of the said juvenile or child, call upon the partner in marriage or the guardian, as the case may be, to satisfy it that such partner or guardian will not re-infect the juvenile or child.

(4)

If there is no organisation either within the jurisdiction of the competent authority, or nearby State for sending the juvenile or child suffering from dangerous diseases, as required under Section 58 of the Act necessary organization shall be set up by the State government of such places, as it may deem fit.

48.

Personnel/Staff of a Home.

(1)

The personnel strength, of a home shall be determined according to the duty, posts, hours of duty per day as the base for each category of staff.

(2)

The institutional organizational set up shall be fixed in accordance with the size of the home, the capacity, workload, distribution of functions and requirements of programmes.

(3)

The whole-time staff in a home may consist of Superintendent/Project Manager, Probation Officer in case of Observation home or Special home). Case Workers (in case of Children's home or shelter home or after care organization), Child Welfare Officer, Counsellor, Educator, Vocational Training Instructor, Medical Staff, Administrative staff, Care Takers, house father and house mother, store keeper, cook, helper, weatherman, safai karmchhari, gardener as required.

(4)

The part-time staff, shall include Psychiatrist, Psychologist, Occupational therapist, and other professionals as may be required by time to time.

(5)

The staff of the home shall be subject to control and overall supervision of the Superintendent or Project Manager, who by order, shall determine their specific responsibilities and shall keep the concerned authority informed of such orders made by him from time to time.

(6)

The duties and responsibilities of the staff under the Superintendent or the project Manager shall be fixed in keeping

with the statutory requirements of the Act.;

(7)

The Superintendent or the Project Manager and such other staff who may be required, shall live in the quarters provided for them within the premises of the home.

(8)

The number of posts in each category of staff shall be fixed on the basis of capacity of the institution; and the staff shall be appointed in accordance with the educational qualification, training and experience required for each category.

(9)

The suggested staffing pattern for an institution with a capacity of 100 juveniles or children could be as mentioned below.

Sl. No.

Designation

Number of Posts

1.

Superintendent or Project Manager

1

2.

Counsellor

2

3.

Case Worker or Probation Officer

3

4.

House Mother or House Father

4

5.

Educator

2 (voluntary or part-time)

6.

Vocational Instructor

1

7.

Doctor

1 (part-time)

8.

Paramedical staff

1

9.

Store-keepercum Accountant

1

10.

Driver

1

11.

Cook

2

12.

Helper

2

13.

Sweeper

2

14.

Art& Craft cum Music Teacher

1 (part-time)

Total

25

15.

Gardner

1.(part-time)

(10)

The number of posts in the category of counsellor, case worker or probation officer, house father or house mother, educator, and vocational instructor shall proportionally increase with the increase in the capacity of the institution.

49.

Special Juvenile Police Unit and Juvenile or the Child Welfare Officer.

(1)

The State Government shall appoint Special Juvenile Police Unit at the district and a juvenile or a child welfare officer shall be designated in term of Section 63 of the Act, at the level of police station.

(2)

The Special Juvenile Police Unit at the district level shall function under a juvenile police officer (of the rank of Inspector of Police) and two paid social workers of whom one shall be a woman and another preferably child expert or having relevant experience.

(3)

The Special Juvenile Police Unit at other places shall be aided by two or more honorary social workers.

(4)

The Special Juvenile Police Units shall be assisted by recognized voluntary organizations, who will help them in identifying juveniles and helping the juveniles or children under the Act.

50.

Honorary /Voluntary Probation Officers.

- To augment the existing probation service, honorary or voluntary probation officers may be appointed from the voluntary organization and social workers found fit for the purpose by the competent authority and their probation services may also be co-opted into the implementation machinery by the orders of the competent authority.

51.

Responsibilities of the local authorities.

- The State Government may delegate powers to local authority under Section 66 of the Act, to carry out the following responsibilities namely.-

(a)

recommending to panel of names to the Selection Committee for appointment of social workers for the Board, Chairperson and members of the Committee, district and city advisory boards under rule 24.

(b)

to designate its responsibilities for the inspection committee under sub-section (2) of Section 35 of the Act.

(c)

to visit the institution and make suggestions for the improvement and development of institutions under sub-section (2) of Section 35 of this Act.

(d)

to give order for inter-state transfer of Juvenile or a Child with prior intimation to the Board and the Committee under Section 57 of the Act.

(e)

create a Fund for the welfare and rehabilitation of the juvenile or the child dealt with under the Act.

52.

Protection of action taken in good faith.

- No suit or legal proceedings shall be against any functionary under the Act including the members of the voluntary

organisation and social worker, in respect of anything which is in good faith done or intended to be done in pursuance of the Act during the performance of the duties assigned to them.

53.

Duties of the Officer-in-charge of Homes.

- The general duties functions and responsibilities of the Officer-in-charge shall be as follows.-

(a)

Providing homely atmosphere of love, affection, care development and welfare of juvenile or children,

(b)

Planning implementation and co-ordinating all institutional activities programmes and operations;

(c)

Maintaining minimum standards in the Home.

(d)

Monitoring of juveniles or children, as the case may be, training and treatment programmes and correctional activities.

(e)

Supervision over juvenile or children' discipline and moral well being

(f)

Allocation of duties to personnel.

(g)

Attending to personnel welfare and staff discipline.

(h)

Preparation of budget and control over financial matters;

(i)

Supervision over office administration.

(j)

Monthly office inspection.

(k)

Daily inspections and round of institution

(l)

Inspection and tasting food prepared for juvenile or child,

(m)

Take prompt action to meet emergencies.

(n)

To take appropriate rehabilitation measures.

54.

Duties of a Probation Officer.

(1)

On receipt of information for the Officer-in-charge, the Special Juvenile Police Unit under clause (b) of Section 13 of the Act, the probation officer shall inquire into the antecedents and family history of the juvenile or the child and such other material circumstances, as may be necessary and submit a social investigation report as early as possible, in Form VIII, to the Board.

(2)

Every probation officer shall carry out all directions given by the Board or the Committee or concerned authority and shall perform the following duties, namely.-

(a)

to make inquiries regarding the home and school conditions, conduct character and health of juvenile or child under their supervision.

(b)

to attend regularly the proceeding of the Board and submit reports;

(c)

to maintain diary case file and such register as may be specified from time to time;

(d)

to visit regularly the residence of the juvenile or the child under their supervision and also places of employment or school attended by such juvenile or the child and to submit fortnightly reports as prescribed in Form IX.

(e)

to accompany juvenile or children where ever possible, from the office of the Board to observation home, special home, children's home or fit person, as the case may be;

(f)

to bring before the Board or the Committee, immediately juveniles or children who have not been of good behaviour during the period of supervision;

(g)

follow-up of juveniles or children after their release from the organizations and extending help and guidance to them;

(h)

establishing linkages with voluntary workers and organizations to facilities rehabilitation and social reintegration of juvenile or children and to ensure the necessary follow up;

(i)

ensuring that the children's need of food and cloth are met as per the specified standard,

(j)

to ensure the cleanliness of the premises and maintenance of physical infrastructure including provisions of water and electricity.

(3)

The probation officer shall not employ a juvenile or children under their supervision for their own purposes or take any private service from them.

55.

Duties of Cases Workers/Child Welfare Officer.

- The general duties, functions and responsibilities of Case Worker or child welfare officer shall be as follows-

(a)

Making social investigation of the juvenile or the child through personal interview and from the family, social agencies and other sources;

(b)

Clarifying problems of the juvenile or the child and dealing with their difficulties in institutional life;

(c)

Participating in the orientation, monitoring, education, vocational and rehabilitation programmes;

(d)

Establishing co-operation and understanding between the juvenile or the child and the Officer-in-charge;

(e)

Assisting the juvenile or the child to develop contacts with family and also providing assistance to family members;

(f)

Participating in the pre-release programme and helping the juvenile or the child to establish contacts which can provide emotional and social support to juvenile or child after their release;

(g)

Ensuring that the children's need of food and cloth are met as per the Specified standard;

(h)

Ensure the cleanliness of the premises and maintenance of physical infrastructure including provisions of water and electricity.

56.

Duties of House Father/House Mother.

(1)

The general duties, functions and responsibilities of a house father, house mother and another care taker shall be as follows-

(a)

Handling juvenile or child with love and affection;

(b)

Taking proper care and welfare of juvenile or child;

(c)

Maintaining discipline among the juveniles or children;

(d)

Maintenance, sanitation and hygiene;

(e)

Implementing daily routine in an effective manner and ensuring children's involvement.

(f)

Looking after the security and safety arrangements of the home;

(g)

Escorting juvenile or children, whenever they go out of the home.

57.

Training of Personnel.

- (1) The State Government or the Officer-in-charge shall provide for training, of personnel of each category of staff, in keeping with their statutory responsibilities and specific jobs requirements.

(2)

The training programme shall include.-

(a)

orientation and training of the newly-recruited staff,

(b)

refresher training courses for every staff member at least once in every five years, and

(c)

staff conferences, seminars, workshops, along with the various components or functionaries of the Juvenile Justice system and the State Government at various levels of the personal organisation.

58.

Advisory Board.

(1)

The Central Government and the State Government shall constitute advisory board at various levels for a period of three years.

(2)

The Central advisory board shall be constituted through the Ministry of Social Justice and Empowerment.

(3)

The State Government shall constitute the State advisory board, district advisory board and the city advisory board,

(4)

All the boards shall hold at least two meeting in a year.

(5)

These advisory boards shall also inspect the various institutional or non-institutional services in their respective jurisdictions; and the recommendations made by them, shall be acted upon by the Central Government, the State Government and the local authorities.

(6)

The Central Government through the Ministry of Social Justice and Empowerment shall set up the Central advisory board to be headed by the Minister concerned and shall consist of the Secretary of the Ministry aforesaid, representatives from State Governments, leading Non-Governmental organisations, children's institution and academic institutions as members.

(7)

A designated official of the Ministry of Social Justice & Empowerment shall function as the Member-Secretary of the Central Advisory board.

(8)

The State Government through the Selection Committee constituted under sub-rule (2) of rule 24 of these rules, shall set up State, district and city level advisory boards, which shall consist of members of the competent authority, academic institutions, locally respectable and spirited citizens, representatives of Non-Governmental organizations and the

representative of local authority, who shall act as its secretary.

(9)

The inspection committee constituted under Section 35 of the Act shall function as district or city advisory board in terms of sub-section (3) of 62 of the Act.

(10)

The termination, resignation, or other vacancy caused in a advisory board and appointment of new members therein shall be done in the same manner as is done in case of the Committee.

59.

Openness & Transparency.

(1)

All Children's Home shall be open to visitors with the permission of the Superintendent or the project Manager, particularly the representatives of local self government, voluntary organizations, social workers, researchers, medicos, academicians, prominent personalities, media and any other person, as the Superintendent or the Project Manager considers appropriate keeping in view of the security, welfare and the interest of the child.

(2)

The Superintendent of the home shall encourage active involvement of local community in improving the conditions in the homes, if, the members of the community want to serve the institution or want to contribute through their expertise.

(3)

The Superintendent or the Project Manager shall maintain a visitors book and the remarks of the visitors given therein shall be considered by the advisory inspecting authority.

(4)

While visiting an institution, the visitors will not say or do anything that undermines the authority of the Superintendent or the Project Manager or is in contravention of the Act or rules or impinges on the dignity of the child.

(5)

The visitors may be allowed to visit observation homes and special homes with the permission of the competent authority.

60.

Juvenile Justice Fund.

(1)

The State Government shall create a Fund at the State level under Section 61 of the Act to be called the Juvenile Justice Fund' (herein under referred to as the Fund) for the welfare and rehabilitation of the juvenile or the child dealt with under the provisions of the Act.

(2)

In addition to donations, contributions or subscriptions coming under subsection (2) of Section 61, the Central Government shall also make contribution to the Fund.

(3)

The Fund shall be applied.-

(a)

to implement programmes for the welfare and rehabilitation of juvenile or children.

(b)

to pay grant-in-aid to non governmental organizations;

(c)

to meet the expenses of State advisory board and its purpose;

(d)

to do all other things that are incidental and conducive to the above purposes.

(4)

The management and administration of the Fund, shall be under the control of the State advisory board under sub-section (3) of Section 61 of the Act.

(5)

The assets of the Fund shall include all such grants and contributions, recurring or non-recurring, from the Central Government and State Government or any other statutory or non-statutory bodies set up by the Central or State

Government as well as the voluntary donations from any individual or organisations.

(6)

All withdrawals shall be made by cheques or requisitions, as the case may be, signed by the secretary-cum-treasurer in the case of amounts not exceeding rupees one thousand and signed duly by the secretary-cum-treasurer and other member of the board of management to be nominated by the State advisory board.

(7)

The regular accounts shall be kept of all money and properties, and all incomes and expenditure of the Fund and shall be audited by a notified firm of Chartered Accountants, or any other recognized authorities as may be appointed by the Board.

(8)

The auditors shall also certify the expenditure from the Fund made by the secretary-cum-treasurer.

(9)

All contracts and other assurances shall be in the name of the board of management and signed on their behalf by the secretary-cum-treasurer and one member of the board of the management authorised by it for the purpose.

(10)

The board of management shall invest the proceeds of sale or other disposal of the property, as well as any money or property not immediately required to be used to serve the objective of the Fund, in any one or more of the modes of investment for the time being authorised by law for the investment of trust moneys as the board of management may think proper.

(11)

The board of management may delegate to one or more of the members such of its powers, which in its opinion are merely a procedural arrangement.

61.

Temporary application of model rules.

- It is hereby declared that until the new rules are framed by the State Government concerned under Section 68 of the Act, these rules shall mutatis mutandis apply in that State.

62.

Pending Cases.

(1)

No juvenile in conflict with law or a child shall be denied the benefits of the Act and the rules made thereunder.

(2)

All pending cases which have not received a finality shall be dealt with and disposed of in terms of the provisions of the Act and the rules made thereunder.

(3)

An juvenile in conflict, with law, or a child shall be given the benefits under sub-rule (1), and it is hereby clarified that such benefits shall be made available not only to those accused who was juvenile or a child at the time of commission of an offence, but also to those who ceased to be a juvenile or a child during the pendency of any enquiry or trial.

(4)

While computing the period of detention or stay of a juvenile in conflict with law or of a child, all such period which the juvenile or the child has already spent in custody, detention or stay shall be counted as a part of the period of stay or detention contained in the final order of the competent authority.

63.

Disposal of records/documents.

- The records or documents in respect of a juvenile or a child shall be kept in a safe place for a period of seven years and no longer and thereafter, be destroyed with the help of the Board or the Committee.

64.

Repeal and Saving.

- The Juvenile Justice Rules, 20 as in force within the State/UT of ...shall stand repealed immediately on the publication of these rules.

Provided that any thing done or omitted to be done or order issued, shall, in so far as it is not inconsistent with the provisions of these rules, be construed to have been done or issued under the relevant provisions of these rules.

Form-I

[See sub-rule (7) of rule 22, sub-rule (20 of rule 27)]

To,
Probation Officer/Person in-charge, Voluntary Organization/Social worker/ Case Worker.

Whereas (1) a report/complaint under section of the Juvenile Justice (Care and Protection of children) Act, 2000 has been received from.....in respect of (name of the juvenile/child) son/daughter of.....residing at.....

(2)
.....son/daughter of.....residing athas been produced before the Board/Committee under section of the Juvenile Justice (Care and Protection of Children) Act, 2000.

You are hereby directed to enquire into the character and social antecedents of the said juvenile and submit your social investigation report on or before.....or within such time allowed to you by the Board/Committee.

Dated this.....day of.....20.....

(Signature)

Principal Magistrate, Juvenile Justice Board/ Chairperson, Child Welfare Committee.

Seal

Form-II

(See sub-rule (8) of rule 22, sub-rule (2) of rule 34)

Supervision Order

When the Juvenile is placed under the care of a parent, guardian or other fit person

Profile No.....of.....20.....

Whereas (name of the juvenile/child) has this day found to have committed an offence and has been placed under the care of(name)..... (address).....on executing a bond by the said.....and the court is satisfied that it is expedient to deal with the said juvenile or child by making an order placing him/her under supervision.

It is hereby ordered that the said juvenile be placed under the supervision of.....probation officer/ease worker, for a period of.....subject to the following conditions-

1. that the juvenile/child along with the copies of the order and the bond executed by the said.....shall be produced before the probation officer/caseworker named therein.....
2. that the juvenile/child shall be submitted to the supervision of the probation officer.
3. that the juvenile/child reside at.....for a period of.....
4. that the juvenile/child shall not be allowed to quite the district jurisdiction of without the permission of the probation officer/case worker.
5. that the juvenile/child shall not be allowed to associate with bad characters.
6. that the juvenile/child shall live honestly and peacefully, and will go to school regular/endeavour to earn an honest livelihood.
7. that the juvenile/child shall attend the attendance centre regularly.
8. that the person under whose care the juvenile/child is placed shall arrange for the proper care, education and welfare of the juvenile/ child.
9. that the preventive measures will be taken by the person under whose care the juvenile/child is placed to see that the child does not commit any offence punishable by any law in force in India.
10. that the juvenile/child shall be prevented from taking narcotic drugs or psychotropic substances or any other intoxicants.
11. that the directions given by the probation officer/case worker from time to time, for I he due observance of the conditions mentioned above, shall be carried out.

Dated this.....day of.....20...

(Signature)

Principal Magistrate, Juvenile Justice Board/ Chairperson, Child Welfare Committee

*Additional, conditions, it any may be inserted by the Juvenile Justice Board/ Child Welfare Committee.

Form-III

(See sub-rule (10) of rule 22, sub rule (11) of rule 26)

Order of detention under Sub-Section.....of.....SectionSub-Section.....of Section and Sub-section of Section

To

The officer in-charge/Project Manager

.....

Whereas on the.....day.....of.....20....(name of the juvenile/child) son/daughter of.....aged.....residing at.....being found in Profile No.....to be juvenile in conflict with law/child in need of care and protection under section is ordered by me principal Magistrate, Juvnile Justice Board/Chairperson, Child Welfare Committee, under section.....of Juvenile Justice Act, 2000 to be kept in the Special Home/Children Home/Shelter Home.....for a period of.....

This is to authorise and require you to receive the said juvenile/child into your charge, and to keep him/her in the Special Home/Children Home/Shelter Home.....for the aforesaid order to be there carried into execution according to law.

Given under my hand and the seal of juvenile Justice Board/Child Welfare Committee.

This.....day of.....20.

(Signature)

Principal Magistrate, Juvenile Justice Board/Chairperson, Child Welfare Committee.

Encl.

Copy of the judgment, if any, of orders, particulars of home and previous record; Strike which is not required.

Previous history under the Juvenile Justice (Care and Protection of Children) Act, 2000

Form IV

(See sub-rule (9) of rule 22, sub rule (10) of rule 26)

Bond to be executed by a Parent/Guardian / Relative or fit person in whose care a child is placed under

Clause (e), Sub-Section (1) of Section 15/Sub-Section (3) of Section 39

Whereas I.....being the parent, guardian, relative or fit person under whose care (name of the juvenile/child has been ordered to be placed by the Juvenile Justice Board/Child Welfare Committee have been directed by the said Juvenile Justice Board/Child Welfare Committee to execute a bond in the sum of Rs.....(Rupees.....) with one surety*/two sureties. I hereby bind myself on the said.....being placed under my care I shall have the said.....properly taken care of and I do further bind myself to be responsible for the good behaviour of the said.....and to observe the following conditions for a period of.....years commencing from.....

(1)

that I shall not change my place of residence without giving previous intimation in writing to the Juvenile Justice Board/Child Welfare Committee through the Probation Officer/child Welfare Officer;

(2)

that I shall not remove the said from the limits of the jurisdiction of the Juvenile Justice Board/Child Welfare Committee without previously obtaining the writing permission of the Board/ Committee;

(3)

that I shall send the said.....daily to school/to such daily work as is approved by the Board/Committee unless prevented from so doing by circumstances beyond my control;

(4)

that I shall send the said.....to an Attendance Centre regularly unless prevented from so doing by circumstances beyond my control;

(5)

that I shall report immediately to the Board/Committee whenever so required by it;

(6)

that I shall produce the said.....misbehaves or absconds from my care;

(7)

that I shall render all necessary assistance to the Probation Officer/ Case-Worker to enable him to carry out the duties of supervision;

(8)

in the event of my making default herein, I bind myself to forfeit to Government the sum of Rs.....(Rupees.....)

Dated this.....day.....of.....20.

Before me signed

Signature of person executing the bond.

Additional conditions, if any, by the Juvenile Justice Board/Child Welfare Committee may be entered numbering them properly;

(Where a bond with sureties is to be executed add)

I/We.....of.....(place of residence with full particulars).....hereby declare myself, surety/ourselves sureties for the aforesaid.....(name of the person executing the bond).....do and perform and in case of his making fault therein; 1/we hereby bind myself/ourselves jointly said severally to forfeit to government the sum of Rs.....dated this the.....day of.....20.....in the presence of

(Signed)

Form V

(See sub-rule (4) of rule 46)

Bond to be signed by juvenile/child who has been ordered under Clause.....of Sub-Section.....of Section.....of the Act. Whereas, I.....inhabit of.....(give full particulars such as house number, road, village/town, tehsil, district, state.....have been ordered to be sent back to my native place by the Juvenile Justice Board/Child Welfare Committee under section of the Juvenile Justice (Care and Protection of Children) Act, 2000 on my entering into a bond under sub-rule.....of rule.....of the Juvenile Justice (Care and Protection of Children), Rules, 2001 to observe the conditions mentioned herein below. Now, therefore, I do solemnly promise to abide by these conditions during the period.....

I hereby bind myself as follows;

1. That during the period.....I shall not ordinarily leave the village/town/district to which I am sent and shall not ordinarily return to.....or go anywhere also beyond the said district without the prior permission of the Board/Committee.
2. That during the said period I shall attend work/school in the village/ town or in the said district to which I am sent;
3. That in case of may attending work/school at any other place in the said district I shall keep the Board/Committee informed of my ordinary place of residence.

Form VI

(See sub-rule (4) of rule 46)

I,.....resident.....of.....give full particulars such as house, no/road, village/town, district, state.....do hereby declare that I am willing to take charge of.....aged under the orders of the Juvenile Justice Board/Child Welfare Committee..... subject to the following terms and conditions;

(I)

If his/her conduct is unsatisfactory I shall at once inform the competent authority.

(II)

I shall do my best for the welfare and education of the said.....as long as he/she remains in my charge and shall make proper provision for his/her maintenance.

(III)

In the event of his/her illness, he/she shall have proper medical attention in the nearest hospital.

(IV)

I undertake to produce him/her before the competent authority when so required.

Signature.

Dated this.....day of.....20.

Signature and address of witness (es);

Form VII

(See sub-rule (5) of rule 18)

I,.....name and designation of the releasing authority.....State Government/Union Territory Administration, do by this order permit.....son/daughter of.....who was ordered to be detained in a observation home, special home, children home, shelter home, after care home by the Juvenile Justice Board/Child Welfare Committee.....under section.....of Juvenile Justice (Care and Protection of Children) Act 2000, for a term of.....on the.....day.....of.....2.....and who is now in the.....homes,at.....to be discharged from the said..... on condition that he/she be placed under the supervision and the authority of.....during the

remaining position of the aforesaid period of stay,

This order is granted subject to the conditions endorsed hereon, upon the breach of any which it shall be liable to be revoked.

Signature and Designation of Releasing Authority

Dated

Place:

Conditions.-

1. The released person shall proceed to an have under the supervision and authority of.....until the expiry of the period of his/her detention unless the remission in sooner cancelled.
2. He/she shall, not without the consent of the.....remove himself/ herself from that place or any other place, which may be named by the said.....
3. He/She shall obey such instructions as he/she may receive from the said with regard to punctual and regular attendance at employment or otherwise.
4. He/She shall attend the Attendance Centre at.....regularly.
5. He/She shall abstain from committing any offence and shall lead a sober and industries life to the satisfaction of.....
6. In the event of his/her committing a breach of any of the above conditions the remission of the period of detention hereby granted shall be liable to be cancelled and on such cancellation he/she shall be death under sub-section (3) of Section 59 of the Juvenile Justice (Care & Protection of Children) Act 2000.

I hereby acknowledge that I am aware of the above conditions which have been read over/explained to me and that I accept the same

(Signature or mark of the release person)

Certified that the conditions specified in the above order have been read over/explained to (Name).....and that he/she has accepted them as the conditions upon which the remission of the period of detention has been granted to him/her and that he/she has been realized accordingly on the.....

Signature and Designation of the certifying authority (i. e. (Officer-in-charge of the institution)

Form VIII

(See rule sub-rule (1) of rule 54)

Social Investigation Report

Sl. No. ?.....

Submitted to the Juvenile Justice Board/Child Welfare

Committee,.....?(address).

Profile No.

Probation Department

Profile No

Under section

Title of Profile

Police Station

Nature of offence charge(In the case of delinquent juvenile)

Name

Religion

Father's name

Caste

Permanent Address

Year of birth

Last address before arrest

Age

Sex

previous institutional history, if any

Family

Members of Family

Name

Age

Health

Occupation or School

Wages, if any

Father.....

Step Father.....

Mother.....

Step Mother.....

Sub-mother.....

Siblings.....

If married, relevant particulars.....

Other near relatives or agencies interested.....

Attitude towards religion normal And ethical code of the home
etc.....

Social and economic status.....

Delinquency record of members of family.....

Present living conditions.....

Relationship between parents and children especially
with the child under investigation.....

Other facts of importance if any.....

JUVENILES/CHILD'S HISTORY

Mental condition Present and past.....

Physical conditions Present and past.....

Habits, interest (moral recreational etc.).....

Outstanding characteristic and Personality traits.....

Companions and their influence.....

Truancy from home, if any.....

School (attitude towards school, Teachers class mates and
vice-versa).....

Work record (jobs held, reasons for leaving Vocational
interest, attitude towards job or employers).....

Neighbourhood and neighbours report.....

Parent attitude towards discipline In the home and child's
reaction.....

Any other remarks.....

Result of Inquiry

Emotional factors

Physical condition

Intelligence

Social and economic factors

Religious factors

Suggested causes of the problems

Analysis of the case giving an idea

As to how the delinquency developed

Recommendation regarding treatment and its

Plan by Probation Officer/Child Welfare Officer

Signature of the Probation Officer/Case Worker

Form IX

(See clause (d) of rule (2) of rule 54)

Fortnightly Progress report of Probationer

Part I ? Name of the Probation Officer/Case Worker

For the month of

Register No.

Competent Authority

Profile No.

Name of the Child

Date of Supervision Order

Address of the Child

Period of Supervision

Part II ? {

|-

| Places of interview

| Dates

|-

|

|

|-

|

|

|-

|

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1. Where the child is residing?

2. Progress made in any educational/training course

3. What work he/she is doing and his/her monthly average earning, if employed.

4. Savings kept in the Post Office

5. Savings Bank Account in his/her name

6. Remarks on his/her general conduct and progress.

7. Whether property cared for?

Part III ? 8. Any proceedings before the competent authority of or

(a)

Variation of conditions of bond

(b)

Change of residence

(c)

Other matters

9. Period of supervision completed on.....

10. Result of supervision with remarks (if any)

11. Name and addresses of the parent or guardian or fit person under whose care the juvenile is to live after the supervision is over.

Date of report

Signature of the Probation Officer/Case Worker

Related AI tags, queries and research notes

Translation